

****Another Municipality Recommended for Fine for Lack of Encryption****

****Date: 14-08-2024****

****Decision****

****Public Authorities****

****Police Report****

****Reported Breach of Personal Data Security****

****Processing Security****

****Children****

The Data Protection Agency has reported Vejen Municipality to the police for insufficient security measures. Three stolen computers containing information about children were not encrypted - and it turned out that the same was true for up to 300 other computers in the municipality. The Data Protection Agency emphasizes that encryption is very often required.

The Data Protection Agency has reported Vejen Municipality and recommended a fine of 200,000 kroner. This is the conclusion of a case that began when the municipality reported a breach of personal data security because five laptops had been stolen.

The computers were intended solely for use by teachers and students as part of the teaching process. In practice, however, they were also used by teachers to create status descriptions of students, class handovers, etc., and therefore contained, among other things, several pieces of information about students with special challenges. None of the computers were encrypted.

In the Data Protection Agency's subsequent investigation of the case, it emerged that there were up to 300 computers in the municipality that risked being used in the same way and which were also not encrypted.

"I must say that I am surprised that we continue to see these cases in municipalities. We have received notifications about this type of breach for several years, we have gone out and warned several times, and we have also recommended fines in previous cases," says Vibeke Dyssemark Thomsen, chief consultant at the Data Protection Agency, and continues:

"Encryption is a very basic security measure that is relatively easy and not particularly costly to implement. We therefore urge all municipalities to take a thorough look at their portable devices and get encryption in order now."

There has been a focus on encryption in municipalities during maturity inspections in both 2021 and 2022, and the Data Protection Agency has previously recommended fines in cases regarding the lack of encryption of portable devices in Favrskov Municipality, Gladsaxe Municipality, Hørsholm Municipality, Odsherred Municipality, and the Civil Affairs Agency. Furthermore, processing security in municipalities – including encryption of portable devices – is also a special focus area for the Data Protection Agency's targeted inspection efforts in 2024.

****Want to know more?****

You can read more below about recommendations and requirements for disk encryption on devices issued to employees:

- ****Security measures that can prevent breaches of personal data security in case of loss/theft of portable devices with unencrypted data****
- ****Technical minimum requirements for state authorities 2023, sikkerdigital.dk****
- ****Technical minimum requirements for state authorities 2024, sikkerdigital.dk****
- ****Recommendations from the Association of Danish Municipalities (KL) from 2023 on technical minimum standards in municipalities****
- ****Cyber Defense that Works, Center for Cyber Security, July 2023****
- ****Guidance on Cyber Security While Traveling – The Organization's Responsibility, Center for Cyber Security, January 2022****
- ****Advice on Security for Mobile Devices, Center for Cyber Security and PET 2018****
- ****National Strategy for Cyber and Information Security, Ministry of Finance, May 2018****

- **NIST SP 800-111, Guide to Storage Encryption Technologies for End User Devices**

Press inquiries can be directed to communications consultant Anders Due at ad@datatilsynet.dk or by phone at 29 49 32 83.